

PCL326241 CREDITORS ADJUSTMENT BUREAU, INC., vs. LANE, KELSEY E

County: tulare

Division: Civil Law and Motion

Department: 19

Hearing date: 2026-07-21

Motion: Plaintiff's Motions to Compel Initial Responses to (1) Special Interrogatories and (2) Production of Documents; (3) Plaintiff's Motion to Deem Admissions Admitted; Sanctions

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Re: CREDITORS ADJUSTMENT BUREAU, INC., vs. LANE, KELSEY E

Case No.: PCL326241

Date: July 21, 2026

Time: 8:30 A.M.

Dept. 19-The Honorable Russell P. Burke

Motion: Plaintiff's Motions to Compel Initial Responses to (1) Special Interrogatories and (2) Production of Documents; (3) Plaintiff's Motion to Deem Admissions Admitted; Sanctions

Tentative Ruling: (1) and (2): To grant the motions order responses within thirty (30) days after service of the notice of this ruling for this motion; (3) To deem Admission Nos. 1 through 11 admitted; to impose sanctions of \$530 total due within thirty (30) days after service of the notice of this ruling for this motion; Plaintiff shall give notice.

Facts Common to (1) through (3)

In this breach of contract, open book account, account stated and reasonable value matter, Plaintiff sues Defendant Kelsey E Lane AKA Kelsey Lane AKA Kelsey Elizabeth Lane DBA Toros ADBA Toros Tree Service.

Defendant answered the complaint on September 24, 2025.

On March 6, 2026, Plaintiff served firsts sets for Special interrogatories, Demand for Production of Documents and Requests for Admissions on Defendant at the address stated on the answer.

Plaintiff further indicates that on April 14, 2026, Plaintiff emailed Defendant reminding her that her discovery responses were past due and that if Defendant did not respond to the discovery requests by April 17, 2026, motions to compel would be filed and sanctions would be sought.

Plaintiff filed these motions April 23, 2026, noting no responses to the discovery noted above have been provided as of the filing date.

Plaintiff seeks to compel initial responses to special interrogatories and requests for production and to deem admissions admitted.

No opposition appears to have been filed.

The Court notes an April 19, 2026 proof of service filing by Defendant which appears to indicate service, on April 9, 2026 of responses to Interrogatory Nos. 1 through 12 and Requests for Documents Nos. 1 through 19. The Court notes, however, that the proof of service appears to indicate the responses were serve to a person in Visalia and, in any event, do not reference the requests for admissions.

Authority and Analysis

(1) Interrogatories

Based on Defendant's failure to respond to the first set of form interrogatories, the Court orders under, Code of Civil Procedure section 2030.290(a), that Defendant provide full and complete verified responses without objection to Plaintiff's first set of form interrogatories, within thirty (30) days after service of the notice of this ruling for this motion. Plaintiff shall give notice.

(2) Requests for Production

Based on Defendant's failure to respond to the first set requests for production of documents, the Court orders under, Code of Civil Procedure section 2031.300(a) that Defendant provide full and complete verified responses without objection to Plaintiff's first set of requests for production of documents, within thirty (30) days after service of the notice of this ruling for this motion. Plaintiff shall give notice.

(3) Requests for Admissions

Code of Civil Procedure section 2033.280 states that if a party to whom requests for admissions have been directed fails to serve a timely response, the propounding party may move for an order that the truth of any facts specified in the requests for admissions be deemed admitted. Here, Defendant has failed to serve a timely response and Plaintiff has moved for an order to deem the admission admitted.

Based on the foregoing, the Court grants Plaintiff's motion. The facts and allegations alleged in Requests for Admissions 1 through 11 of Plaintiff's First Set of Requests for Admission shall be deemed admitted.

Sanctions

Under Code of Civil Procedure sections 2033.280(c) (Admissions), 2030.290(c) (Interrogatories) and 2031.300(c) (Requests for Production), the Court imposes sanctions as requested by Plaintiff on Defendant in the total amount of \$530.00, consisting of 1 hours total for all three motions plus \$60 filing fee for each motion. The Court notes there is no meet and confer requirement and all that is necessary to obtain the relief requested on this motion to compel initial responses and

deem admissions admitted is that the other party failed to respond within the designated time. Further, the Court sets \$350 as the reasonable hourly rate prevailing in this community (PLCM Group Inc. v. Drexler (2000) 22 Cal.4th 1084, 1095.)

Sanctions are due within thirty (30) days after service of the notice of this ruling for this motion. Plaintiff shall give notice.

If no one requests oral argument, under Code of Civil Procedure section 1019.5(a) and California Rules of Court, rule 3.1312(a), no further written order is necessary. The minute order adopting this tentative ruling will become the order of the court and service by the clerk will constitute notice of the order. Court reporters are usually not available for law and motion matters in the civil division. The parties and counsel must provide their own reporter if they want a transcript of the proceedings.